

CROSS-EXAMINATION PROCESSES – IDENTIFYING/USING LIES

IDENTIFY

Search for **C**ontradictions, **I**nconsistencies, **A**bsurdities – **CIA**s

Listen to (or read) the words

Visualise what the words describe

Test what is being described

Against what the witness has previously said

Before offence

At time of offence

When interviewed

Other occasions

In testimony

Against what others have said

Against your own knowledge and experience

Is it likely to be true?

Is it likely to be false?

Is it a blatant lie?

Apply the “Innocent Person”/“Honest Witness” Test

Compare the witness’s words and actions with those of a truly innocent/honest person in the same circumstances—before, during and after offence

COMMIT

Tie witness to the truth, accuracy and completeness of the evidence of his admissions

Without alerting witness to the CIA's you have identified—draw out potentially damaging details in his story

Encourage him to describe and to elaborate on the things he is lying about

CONFRONT

Confront witness with the CIA's in his evidence, his various accounts and his actions

If his credit is not yet destroyed

Make him choose between the contradictory/inconsistent versions

Press him for his reasons for abandoning the versions not chosen

Demonstrate the absurdities of his evidence and actions

EXPLOIT

Before witness recovers from the confrontation

Attribute motive(s) for lying

If witness is the defendant—suggest that he lied because he knew that the truth would reveal his guilt

Persuasively and succinctly put prosecution Case Theory—our explanation for how and why defendant committed the offence